

Criminal Law, Investigation and Procedure Victoria
Trial Procedure
Evidence
Evidence Act 2008 (Annotated)
Chapter 3 – Admissibility of Evidence (ss 55–139)
Part 3.7 – Credibility (ss 101A–108C)
Division 2 – Credibility of witnesses (ss 102–108)
Exception—cross-examination as to credibility
Last Review: 28/09/2023

103 Exception—cross-examination as to credibility

Legislation

- (1) The credibility rule does not apply to evidence adduced in cross-examination of a witness if the evidence could substantially affect the assessment of the credibility of the witness.
- (2) Without limiting the matters to which the court may have regard for the purposes of subsection (1), it is to have regard to—
 - (a) whether the evidence tends to prove that the witness knowingly or recklessly made a false representation when the witness was under an obligation to tell the truth; and
 - (b) the period that has elapsed since the acts or events to which the evidence relates were done or occurred.

View [s 103 of the Evidence Act 2008 \(Vic\)](#) within the legislation collection.

SECTION 103 COMMENTARY

[EA.103.20] Credibility evidence admissible where it could substantially affect credibility

Pursuant to [s 103](#) credibility evidence can be adduced in cross-examination of a witness if the evidence could “substantially affect” the assessment of the credibility of the witness.

This section provides that the matters to which the court may have regard in ruling on this include whether the evidence tends to prove that the witness made a false representation when the witness was under an obligation to tell the truth and the time that has elapsed since the events to which the evidence relates occurred.

The requirement that the evidence must have a substantial affect on a witness' credibility is a departure from the common law, where credibility evidence could be tendered so long as it was merely relevant to credibility.

[Section 103](#) aims to limit the amount of credibility evidence that can be used to attack a witness during cross-examination. This is principally to be achieved by importing the words “substantially effect”. However, this term has been interpreted broadly.¹

The meaning of the phrase was considered in [R v El-Azzi \[2004\] NSWCCA 455](#)² where the court noted evidence will have a substantial effect on a witnesses credibility where it could “rationally effect” the assessment of their credit or has the potential to have a “real bearing” on their credibility. These concepts are vague and add little of substance to the test for admissibility.³

For an application of [s 103](#), see [IW v The Queen \[2019\] NSWCCA 311](#)⁴ (evidence that the accused had smacked a child was held to have been wrongly admitted to rebut claims of his good character); [R v ST \(No 2\) \[2014\] ACTSC 52](#).⁵

Where a representation is admitted into evidence, but the person who made the representation does not give evidence, for example because he or she is unavailable, then pursuant to [s 108A](#) credibility evidence relating to that person can be admitted in the same situations as if that person were a witness.

In [Tieu v The Queen \[2016\] NSWCCA 111](#)⁶ it was held that [s 137](#) applies to assessment of the admissibility of credibility evidence. See also Odgers S, *Uniform Evidence Law* (Thomson Reuters, subscription service) at [\[EA.103.30\]](#) ff.

Footnotes

- 1 But see [Lysle v The Queen \[2012\] NSWCCA 20](#) for an illustration of where questions are not permitted under [s 103](#).

- 2 *R v El-Azzi* [2004] NSWCCA 455.
3 See also *R v Lumsden* [2003] NSWCCA 83; *Montgomery v The Queen* [2013]
 NSWCCA 73 at [131]–[136].
4 *IW v The Queen* [2019] NSWCCA 311.
5 *R v ST (No 2)* [2014] ACTSC 52.
6 *Tieu v The Queen* [2016] NSWCCA 111.

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